

Order Denying Reconsideration

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 42 — Filed March 30, 2026

Cinder Lake's motion to reconsider or vacate the March 25 categorical-waiver and production order is DENIED. The Court concludes that Cinder Lake repeats arguments considered at the March 24 hearing and identifies no intervening authority, new evidence, or clear error requiring a different result.

The April 1, 2026 production deadline remains in effect. This order does not decide any future request beyond the existing investigation files.

Standard Applied

Reconsideration is an extraordinary remedy used to address an intervening change, newly available evidence, clear error, or manifest injustice, not to relitigate issues already presented. Cinder Lake emphasizes irreversible disclosure, but that consequence was raised before the March 25 order.

The Court considers the motion promptly because the deadline is short. It reviews the exact letter and prior reasoning rather than treating urgency alone as a merits ground.

Disclosure Reasoning Reaffirmed

The Court reaffirms its view that Cinder Lake did more than announce independent conduct. It invoked outside counsel's review immediately before stating the organization's conclusion about Calder's reports and identifying remediation.

Although the letter quoted no communication, the Court concludes the linked presentation conveyed the investigation's essential assessment. It therefore declines to require a separately attributed sentence from counsel before applying Rule 502(a).

Scope and Document-Specific Objection

The Court also reaffirms categorical scope over the existing memorandum, logged communications, drafts, litigation assessments tied to the investigation, and remediation advice. In its view, examining only isolated entries would not cure the fairness problem created by presentation of the overall result.

The ruling does not establish that all communications sharing a broad topic are discoverable. Future related discovery remains subject to ordinary standards, consistent with the partial denial in the March 25 order.

Interim Stay Request

The request for an interim stay embedded in the reconsideration motion is denied without prejudice to a separately supported stay motion. The Court recognizes the asserted confidentiality injury but concludes Cinder Lake has not shown sufficient likelihood of obtaining reconsideration from this Court.

The January 9 protective order will govern use after production. Cinder Lake may pursue any relief available elsewhere, but no automatic stay follows from that possibility.

Conclusion

The March 25 order remains unchanged. Cinder Lake shall complete the ordered production by 5:00 p.m. Eastern time on April 1, 2026. The complete lodged exhibits remain sealed from public access pending further order, but party-to-party production is not stayed.

SO ORDERED March 30, 2026 by Evelyn Harrow, Fictional United States District Judge.